

Stereo.HCJDA 38.
JUDGMENT SHEET.

LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI.
JUDICIAL DEPARTMENT

F.A.O. NO.02 OF 2024

ASIF ZAHOOR

Vs.

MUHAMMAD HANIF

J U D G M E N T

Date of hearing:	<u>07.04.2025</u>
Appellate by:	Mr. Muhammad Yasir, Advocate.
Respondent by:	Syed Muzammil Ullah Salari, Advocate.

Mirza Viqas Rauf, J. This appeal under Section 24 of the Cantonments Rent Restriction Act, 1963 (hereinafter referred to as “**Act, 1963**”) emanates from order dated 11th December, 2023, whereby the Additional Rent Controller, Rawalpindi Cantt proceeded to allow the application under Section 17(9) of the **Act, 1963**, moved by the respondent, seeking striking off defense of the appellant on the ground that he failed to comply the tentative rent order.

2. Facts in brevity, necessary for adjudication of instant appeal, are that the respondent filed an ejectment application under Section 17 of the **Act, 1963**, seeking eviction of the appellant on the ground of default in payment of rent and personal *bona fide* need before the Additional Rent Controller, Rawalpindi Cantt. In order to resist the ejectment proceedings, the appellant submitted his reply wherein he took a stance that though he initially entered into tenancy agreement with the respondent through written agreement on 15th May, 2018 but on expiry of the same fresh rent agreement was executed by the respondent with the wife of the appellant starting from 10th March, 2020 till 10th March, 2025 and in view thereof, he is no more the

tenant and wrongly been impleaded in the ejectment application. While proceeding with the ejectment application, the Additional Rent Controller passed the tentative rent order on 22nd September, 2023. The respondent then moved an application under Section 17(9) of the **Act, 1963** complaining that the appellant did not adhere the tentative rent order and he is liable to be evicted. The application was allowed and while striking off defense of the appellant by way of order dated 11th December, 2023, he was directed to handover vacant possession of the premises in question within thirty days to the respondent.

3. Learned counsel for the appellant contended that when once relationship was denied by the appellant, the Additional Rent Controller was precluded to pass the tentative rent order. He added that the impugned eviction order is untenable in the circumstances.

4. Conversely, learned counsel for the respondent submitted that the appellant, for all intents and purposes, is tenant and since he did not comply the tentative rent order so eviction order was passed rightly.

5. Heard, record perused.

6. It is an admitted fact that initially the appellant entered into tenancy agreement with the respondent through his attorney Muhammad Ilyas on 01st of January, 2018 which ended on 31st December, 2018. The appellant, however, remained in possession of the rented premises even thereafter when a fresh rent tenancy agreement was ultimately executed between the respondent and wife of the appellant namely Fauzia Andaleeb Mughal. The stance of the appellant is that when the respondent entered into fresh tenancy agreement with his wife, he remained no more as tenant of the respondent and as such the Additional Rent Controller wrongly passed the tentative rent order.

7. Before moving further so as to mull over propriety of the eviction order, it would be advantageous to examine the definition of

tenant mentioned in Section 2(j) of the **Act, 1963**, which reads as under:-

- (j) “tenant” means any person who undertakes or is bound to pay rent as consideration for the possession or occupation of a building by him or by any other person on his behalf, and includes:-
 - (i) any person who continues to be in possession or occupation of the building after the termination of his tenancy; and
 - (ii) in the event of the death of the tenant, his heirs and successor and after the termination of the tenancy, his heirs and successors who continue to be in possession or occupation of the building.

(Underlining is supplied for emphasis)

From the bare perusal of above referred provision of law, it is manifestly clear that tenant can be a person, who undertakes or is bound to pay rent as consideration for the possession or occupation of a building by him or by any other person on his behalf and it includes any person, who continues to be in possession or occupation of the building after termination of his tenancy and in the event of death of the tenant, his heirs and successors and after termination of the tenancy, his heirs and successors who continue to be in possession or occupation of the building. Though a fresh tenancy agreement was executed between the respondent and wife of the appellant but a wade through the record reveals that the appellant remained depositing the monthly rent of the rented premises to the respondent even after the execution of fresh tenancy agreement. The appellant is thus a tenant for all intent and purposes.

8. Section 17 of the **Act, 1963** outlines the grounds for eviction of a tenant. Sub-Section (8) of Section 17 ordains that on the first hearing of proceedings under this section or as soon thereafter as may be but before the issues are framed, the Controller shall direct the tenant to deposit in his office before a specified date all the rent due from him, and also to deposit regularly till the final decision of the case, before the 5th day of each month, the monthly rent which subsequently

becomes due, and if there be any dispute as to the amount of rent due, the Controller shall determine such amount approximately. Whereas Sub-Section (9) of Section 17 of the **Act, 1963** provides the consequences of non-compliance of tentative rent order passed in terms of Sub-Section (8) and reads as under:-

(9) If the tenant fails to deposit the amount of rent before the specified date or, as the case may be, before the 5th day of the month, his application, if he is a petitioner, shall be dismissed, or his defence, if he is a respondent, shall be struck off, and the landlord shall be put in possession of the building without any further proceedings.

The Additional Rent Controller, in the above backdrop, was fully justified to pass the tentative rent order, which admittedly has not been complied by the appellant. As already observed that Section 17(9) of the **Act, 1963** commands that if the tenant fails to deposit the amount of rent before the specified date or, as the case may be, before the 5th day of the month, his application, if he is a petitioner, shall be dismissed, or his defence, if he is a respondent, shall be struck off, and the landlord shall be put in possession of the building without any further proceedings. When once, the appellant failed to comply the tentative rent order, no option was left with the Additional Rent Controller, except to strike off his defence and to pass the eviction order, which is unexceptionable in the circumstances.

9. The nutshell of above discussion is that the appellant has failed to point out any material irregularity justifying interference with the impugned order. Resultantly, this appeal fails and is **dismissed**, with no order as to costs. Office is directed to remit back the record of the Additional Rent Controller, Rawalpindi.

(MIRZA VIQAS RAUF)
JUDGE

SAJJAD

APPROVED FOR REPORTING

JUDGE